USOAP CMA ~~2020~~2024 Protocol Questions
Civil aviation organization — ORG

Explanatory Note on the ~~2020~~2024 Edition of the Protocol Questions (PQs):

Revised on the basis of the ~~2017~~2020 edition, this ~~2020~~2024 edition of the USOAP CMA Protocol Questions (PQs) follows the ~~recommendations of~~ High-level Conference on COVID-19 (HLCC 2021) Recommendations (C-WP/15312 refers) regarding the ~~Group of Experts for a~~ integration of State Safety Programme Implementation Assessment (SSPIA) with traditional Universal Safety Oversight Audit Programme (USOAP ~~–~~) Continuous Monitoring Approach (CMA ~~Structured Review (GEUSR) (C-WP14757 refers)~~) activities that ~~was~~were approved by the Council of ICAO on ~~18 June 2018.~~4 March 2022 (C-DEC 225/7 refers). Some notable features of this ~~2020~~2024 edition of PQs are the ~~exclusion~~addition of ~~certain PQs that are not relevant~~ Safety Management System (SMS) related PQs to the ~~State safety oversight system or the accident~~areas of personnel licensing and ~~incident investigation system, reduction of the total number~~training (PEL), aircraft operations (OPS), airworthiness of ~~PQs (from 943 to 790~~aircraft (AIR), air navigation services (ANS), and ~~identification~~aerodromes and ground aids (AGA), as well as the addition of a ~~subset of Priority PQs.~~

~~At the same time, a separate~~ set of new PQs on State Safety Programme (SSP) ~~was developed in 2018 to assess the SSP implementation by States. These~~ as a new audit area.

The newly added PQs on SSP and SMS will have an undetermined status thus will not affect the Effective Implementation (EI) scores, until they are audited. Dedicated EI score for SSP ~~related PQs are posted on the "CMA Library" page of the USOAP CMA online framework (https://www.icao.int/usoap).~~

will be provided separately. Once States and relevant regional organizations are migrated to the ~~2020~~2024 PQ edition, the ~~Effective Implementation (~~EI~~) values~~ scores for ~~all their~~the USOAP activities on safety oversight, as indicated on the USOAP CMA online framework, will ~~also~~ be updated and adjusted accordingly.

The existing SSPIA PQs, including the self-assessments submitted and the assessment results for those States which had received SSPIAs, will be archived and can be made available upon request.

Introduction to the ICAO USOAP CMA Protocol Questions

Protocol Questions (PQs) are the primary tool used in the ICAO Universal Safety Oversight Audit Programme (USOAP) Continuous Monitoring Approach (CMA) for assessing the effective implementation of the eight critical elements (CEs) of a ~~State~~State's safety oversight system. Developed based on ICAO Standards and Recommended Practices (SARPs), Procedures for Air Navigation Services (PANS) and ICAO guidance material, the PQs are revised periodically by ICAO to reflect amendments to the ICAO provisions and reference documents.

The PQs are organized by audit areas and each PQ is associated with one of the eight CEs.

The ~~eight~~nine audit areas are as follows:

1) Primary aviation legislation and specific operating regulations (LEG);
2) Civil aviation organization (ORG);
3) Personnel licensing and training (PEL);
4) Aircraft operations (OPS);
5) Airworthiness of aircraft (AIR);
6) Aircraft accident and incident investigation (AIG);
7) Air navigation services (ANS); ~~and~~
8) Aerodromes and ground aids (AGA); and
~~8)~~9) State Safety Programme (SSP).

The eight CEs are as follows:

CE-1. Primary aviation legislation
CE-2. Specific operating regulations
CE-3. State system and functions
CE-4. Qualified technical personnel
CE-5. Technical guidance, tools and provision of safety-critical information
CE-6. Licensing, certification, authorization and approval obligations
CE-7. Surveillance obligations
CE-8. Resolution of safety issues

States are expected to use the PQs to conduct regular self-assessments and in this way, monitor the health of their aviation safety oversight system in a proactive manner.

A State is deemed to have *fully addressed* a PQ when it has implemented all the required elements of the PQ. This generates a *"satisfactory"* status of implementation for the PQ. If the State provides insufficient or no evidence of compliance with the elements outlined in the PQ, the PQ is assessed as *"not satisfactory"*. The State is required to develop and implement a corrective action plan (CAP) which fully addresses the associated PQ and all identified deficiencies.

The status of each PQ for a State is reflected in the USOAP CMA Online Framework (https://www.icao.int/usoap) and summarized in the activity report.

For reference purposes, the PQs are hereby presented in a table format. Each PQ is assigned a PQ number (e.g. 1.001), associated with a CE (e.g. CE-1), and supplemented by the relevant "Guidance for Review of Evidence" and "ICAO References". PQs shown in shaded rows can be assessed only in a USOAP CMA on-site activity, while Priority PQs are indicated as such (with "Yes" note) under the "PPQ" column.

For each PQ, the corresponding "Guidance for Review of Evidence" provides *an itemized list of elements* to be implemented by the State in order to address the PQ *satisfactorily*. When preparing for a USOAP CMA audit, States should use these listed elements, as applicable, to prepare the necessary supporting documentation and evidence for all PQs within the scope of the audit. When preparing for an ICAO validation activity, States should provide the necessary supporting documentation and evidence for all PQs, within the scope of the validation activity, that were previously assessed as *"not satisfactory"*.

Representatives of a State's civil aviation authority/investigation authority who participate in USOAP CMA activities should be familiar with each PQ and the related "Guidance for Review of Evidence" that will be addressed during the activities. All the information and evidence for each PQ that are to be provided to the USOAP CMA activity team should be prepared in advance.

The “Summary of Amendments” table provides a list of new, revised, merged and deleted PQs and a brief description of the amendments.

For the ~~2020~~2024 edition of the PQs, the total number of PQs is ~~790~~851 and a breakdown for each area is shown below:

	Area	Number of ~~2020~~2024 PQs
1	LEG	23
2	ORG	13
3	PEL	~~93~~100
4	OPS	~~126~~136
5	AIR	~~186~~198
6	AIG	84
7	ANS	~~122~~128
8	AGA	~~143~~153
9	SSP	16
TOTAL NUMBER		***~~790~~851***

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General Guidelines for All Areas

Legislation, Primary Aviation Legislation and Specific Operating Regulations

The term "legislation" in the USOAP CMA Protocol Questions is used as a generic term to include primary aviation legislation and specific operating regulations.

The term "primary aviation legislation" in the USOAP CMA Protocol Questions includes any legislative provision and/or instrument promulgated and enforceable in the State (e.g. laws, acts, codes and international treaties).

The term "specific operating regulations" in the USOAP CMA Protocol Questions includes any binding regulatory provisions and/or instruments in the State (e.g. regulations, decrees, rules, and orders).

Processes and Procedures

Processes and procedures should clarify *who does what, how, when* (or *within what timeframes*) and *in coordination with whom*, as applicable.

Delegation of Duties and Tasks

When a State has delegated some of its safety oversight duties and tasks to another State or organization, the PQs on the delegation may have to be evaluated with the entity to which the duties and tasks have been delegated.

The State remains responsible for ensuring that the delegated duties and tasks are performed, at all times, by qualified individuals who ensure the implementation of the applicable legislation as well as the established processes and procedures. There should also be a system in place for conducting surveillance of the delegated duties and tasks and a process for the resolution of identified safety deficiencies.

Regulatory Function versus Service Provider Function

For a State which has not established a clear separation between its regulatory function and its service provider function or where the State Civil Aviation Authority (CAA) is both the regulator *AND* the service provider, the related PQs remain applicable.

Industry Visits

Industry visits are conducted to review and verify that the implementation of the established requirements, procedures and safe practices in each area complies with ICAO provisions and the State's applicable national legislation.

On-Site Activity

PQs that can only be assessed in a USOAP CMA on-site activity are shown in shaded rows in the PQ table.

Priority Protocol Questions (PPQs)

A subset of PQs is classified as Priority PQs or PPQs, which, if found not satisfactory, may indicate a lack of capability by a State to identify and/or resolve operational safety and fundamental accident investigation deficiencies effectively.

Annex

The term "Annex" in the USOAP CMA Protocol Questions stands for Annex to the Chicago Convention.

ICAO References

The ICAO references are classified as follows (shown here in alphabetical order): Chicago Convention (CC), ICAO Circular (Cir), ICAO Guidance Material (GM), Procedures for Air Navigation Services (PANS), Recommended Practice (RP), Regional Supplementary Procedures (SUPPS), and Standard (STD).

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Acronyms and Abbreviations

A = Annex to the Chicago Convention
Amdt. = Amendment
C = Chapter
CAA = Civil Aviation Authority
CE = Critical Element
CMA = Continuous Monitoring Approach
Doc = ICAO Document or Manual
GM = ICAO Guidance Material
OJT = On-the-job training
ORG = Civil Aviation Organization
PPQ = Priority Protocol Question
PQ = Protocol Question
RO = Regional Office
STD = International Standard contained in an Annex to the Chicago Convention
USOAP = Universal Safety Oversight Audit Programme

List of ICAO Reference Documents

Annex 6 — *Operation of Aircraft*
Part I — *International Commercial Air Transport — Aeroplanes* (Amdt. 48, 12th edition, July 2022)
Part II — *International General Aviation — Aeroplanes* (Amdt. 40, 11th edition, July 2022)
Part III — *International Operations — Helicopters* (Amdt. 24, 11th edition, July 2022)
Annex 8 — *Airworthiness of Aircraft* (Amdt. 109, 13th edition, July 2022)
Annex 15 — *Aeronautical Information Services* (Amdt. 42, 16th edition, July 2018)
Annex 19 — *Safety Management* (Amdt. 1, 2nd edition, July 2016)
Cir 295— *Guidance on the Implementation of Article 83 bis of the Convention on International Civil Aviation* (February 2003)
Doc 8126 — *Aeronautical Information Services Manual* (Amdt. 2, 6th edition, 2003)
Doc 8335 — *Manual of Procedures for Operations Inspection, Certification and Continued Surveillance* (6th edition, 2022)
Doc 9379 — *Manual of Procedures for Establishment and Management of a State's Personnel Licensing System* (2nd edition, 2012)
Doc 9734 — *Safety Oversight Manual*
Part A — *The Establishment and Management of a State's Safety Oversight System* (3rd edition, 2017)
Part B — *The Establishment and Management of a Regional Safety Oversight Organization* (Amdt. 1, 2nd edition, 2011)
Doc 9735 — *Universal Safety Oversight Audit Programme Continuous Monitoring Manual* (~~4th~~5th edition, ~~2014~~2023)
Doc 9756 — *Manual of Aircraft Accident and Incident Investigation*
Part I — *Organization and Planning* (2nd edition, 2015)
Doc 9774 — *Manual on Certification of Aerodromes* (1st edition, 2001)
Doc 9946 — *Manual on Regional Accident and Incident Investigation Organization* (1st edition, 2011)

Doc 9962 — *Manual on Accident and Incident Investigation Policies and Procedures* (2nd edition, 2019)
Doc 10055 — *Manual on Notification and Publication of Differences* (1st edition, 2019)
Doc 10059 — *Manual on the Implementation of Article 83* bis *of the Convention on International Civil Aviation* (1st edition, 2017)
Doc 10066 — Procedures for Air Navigation Services: Aeronautical Information Management (1st edition, 2018)

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SUMMARY OF AMENDMENTS – ORG PQs

Note 1.— The PQs are listed here sequentially for convenience. This may differ from their order on the USOAP CMA Online Framework or in the following document.
Note 2.— The PQs in the shaded rows require a USOAP CMA on-site activity. For the remaining PQs, no on-site activity is required in most cases.

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments
		New	Revised	Deleted	Merged	No change	
~~2.007~~	~~.~~	☐	☐	☒	☐	☐	~~PQ has been deleted and merged with 2.019 in 2020 Edition.~~
~~2.021~~	~~.~~	☐	☐	☒	☐	☐	~~PQ has been deleted.~~
2.010	2.010	☐	☒	☐	☐	☐✓	~~Guidance revised for clarity. Reference revised.~~No change.
2.011	2.011	☐	☒	☐	☐	☐✓	~~Guidance revised for clarity. Reference revised.~~No change.
2.013	2.013	☐	☒	☐	☐	☐✓	~~Guidance revised for clarity. Reference revised.~~No change.
2.017	2.017	☐	☒	☐	☐	☐✓	~~Question and guidance revised for clarity. Reference revised.~~No change.
2.019	2.019	☐	☐	☐	☒	☐✓	~~Merged with 2.007 of 2017 PQs. Question and guidance revised for clarity. Reference revised.~~No change.
2.023	2.023	☐	☒	☐	☐	☐✓	~~Guidance revised for clarity. Reference revised.~~No change.
2.051	2.051	☐	☒	☐	☐	☐✓	~~Reference revised.~~No change.
2.053	2.053	☐	☒	☐	☐	☐✓	~~Reference revised.~~No change.
2.101	2.101	☐	☒	☐	☐	☐✓	~~Reference revised.~~No change.
2.103	2.103	☐	☒	☐	☐	☐✓	~~Reference revised.~~No change.
2.105	2.105	☐	☒	☐	☐	☐✓	~~Reference revised.~~No change.
2.205	2.205	☐	☒	☐	☐	☐✓	~~Guidance revised for clarity. Reference revised.~~No change.
~~.~~2.207	2.207	☒	☐	☐	☐	☐✓	~~New PQ~~No change.

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PQ No.	Protocol Question	Guidance for Review of Evidence	ICAO References	PPQ	CE
2.010	Has an organizational structure been established at the State level depicting the authorities with functions related to safety oversight or aircraft accident and incident investigation in the State and their reporting lines?	1) Evaluate current approved organizational structures (charts) or other equivalent documents. 2) Confirm the inclusion of all audit areas: PEL; OPS; AIR; AIG; ANS; and AGA. 3) The authority responsible for aircraft accident and serious incident investigation may be permanent or established on an ad hoc basis. Note to the auditor: This PQ addresses the organizational structure for civil aviation activities at the State level. Separate PQs, in each audit area, address the organizational structure at the CAA Department/investigation authority level.	STD A19 3.2.3.1 GM Doc 9734 Part A, C3 Doc 9379 Part I, C2 Doc 9756 Part I, C2 Doc 9774 5.1 & 5.4 Doc 9962 C3	Yes	CE-3
2.011	Are the functions and responsibilities of each authority with functions related to safety oversight or aircraft accident and incident investigation clearly	1) Review documents defining the functions and responsibilities of each authority at the State level with functions related to safety oversight or aircraft accident and incident investigation.	STD A19 3.2.3.1	Yes	CE-3

PQ No.	Protocol Question	Guidance for Review of Evidence	ICAO References	PPQ	CE
	defined?	2) Verify inclusion of key functions and responsibilities in each area. Note to the auditor: Separate PQs, in each audit area, address functions and responsibilities at the CAA Department/investigation authority level.	GM Doc 9734 Part A, C3		
2.013	If Regional Offices (ROs) have been established for authorities which perform functions related to safety oversight or aircraft accident and incident investigation, are their roles and responsibilities clearly defined?	Review: a) ~~Document~~document(s) defining the functions and responsibilities of ROs~~.~~ ; b) ~~Organizational~~organizational structure(s)/chart(s~~).~~); and c) ~~Document~~document(s) defining the level of authority of the ROs.	STD A19 3.2.3.1 GM Doc 9734 Part A, C3 Doc 9774 5.1.5		CE-3
2.017	If the State has delegated or transferred safety oversight-related tasks to other entities, have procedures or mechanisms been established to ensure that the State's obligation for safety oversight of the delegated or transferred tasks is being met?	Review: 1) ~~The~~the specific tasks which have been delegated or transferred~~.~~ ; and 2) ~~The~~the procedures or mechanisms established (e.g. jointly with the other States having delegated or transferred tasks	STD A19 3.2.3.1 GM		CE-3

PQ No.	Protocol Question	Guidance for Review of Evidence	ICAO References	PPQ	CE
		to the same entity) to review the performance of tasks by the other entities.	Doc 9734 Part A, C3 Part B		
2.019	When there is more than one authority (organization) with functions related to safety oversight or aircraft accident and incident investigation, have procedures been established to ensure that all areas are covered and that there is no overlap of responsibilities?	1) Verify if State has identified one specific authority responsible for coordination of all ICAO-related matters. 2) Review the system in place to identify any area for which there may be overlaps. 3) Identify if tasks related to safety oversight or accident/incident investigation have not been assigned to any entity.	STD A19 3.2.3.1 GM Doc 9734 Part A, C3		CE-3
2.023	Has the State established and implemented mechanisms to avoid perceived or potential conflict of interest of inspectorate staff?	1) Review mechanisms in place. 2) In cases where the CAA has inspectors seconded from a service provider in the State, review the formal arrangements established and implemented to either: a) exclude the seconded personnel from performing safety oversight functions on the service provider that employs them; or b) effectively mitigate the risk of perceived or potential conflict of interest. 3) Verify in all audit areas: PEL, OPS, AIR, ANS and AGA.	STD A19 3.2.3.1 GM Doc 9734 Part A, C3	Yes	CE-3

PQ No.	Protocol Question	Guidance for Review of Evidence	ICAO References	PPQ	CE
		Note to the auditor: This PQ is not linked to AIG.			
2.051	Has the State established and implemented a mechanism to ensure that each safety oversight authority has sufficient financial resources to meet its national and international obligations?	1) Review mechanisms to fund the authorities (e.g. State budget, fees and charges). 2) Review mechanisms to determine budget needs. 3) Review actual budget allocated. 4) Verify that sufficient financial resources are available for: a) ~~Development~~development of regulations, procedures and other guidance material; b) ~~Training;~~ ~~—~~training; c) ~~Surveillance~~surveillance activities; and d) ~~Resolution~~resolution of safety deficiencies. 5) Verify in the following audit areas: PEL, OPS, AIR, ANS and AGA. Note to the auditor:	STD A19 3.2.3.1 GM Doc 9734 Part A, C3	Yes	CE-3

PQ No.	Protocol Question	Guidance for Review of Evidence	ICAO References	PPQ	CE
		A separate PQ is used for the investigation authority (AIG 6.105).			
2.053	Has the State established a mechanism to ensure that each safety oversight authority has sufficient personnel to meet its national and international obligations?	Verify: 1) Methodology to identify staff needs for all specialties. 2) The process to establish and fill the required posts initially and on an ongoing basis. 3) State's ability to accomplish all required activities, including: a) ~~Development~~development of regulations, procedures and other guidance material; b) ~~Training;~~ —training; c) ~~Surveillance~~surveillance activities; and d) ~~Resolution~~resolution of safety deficiencies. Notes to the auditor: 1) A separate PQ is used for the investigation authority (AIG 6.113). 2) The implementation of this mechanism is addressed by the following PQs: PEL 3.109; OPS 4.025;	STD A19 3.2.3.1 GM Doc 9734 Part A, C3		CE-3

PQ No.	Protocol Question	Guidance for Review of Evidence	ICAO References	PPQ	CE
		AIR 5.033; AIR 5.473; ANS 7.061; ANS 7.209; ANS 7.269; ANS 7.373; ANS 7.417; ANS 7.487 & AGA 8.039.			
2.101	Does each safety oversight entity/investigation authority have an active role in the selection and recruitment of sufficiently qualified and experienced technical personnel?	Verify: 1) ~~That~~that competency requirements are established by the respective safety oversight entities/investigation authority, if applicable, responsible for each technical and managerial post~~.~~ ; 2) ~~Active~~active participation of the respective safety oversight entity/investigation authority, if applicable, in the recruitment and the selection of prospective personnel~~.~~ ; and 3) ~~Each~~each audit area as applicable: PEL, OPS, AIR, AIG (only when there is a permanent investigation authority), ANS and AGA.	STD A19 3.2.4 GM Doc 9734 Part A, C3	Yes	CE-4
2.103	Is each safety oversight entity/investigation authority able to attract, recruit and retain sufficiently qualified/experienced technical personnel?	1) Review rates of vacancy and of turnover for the personnel of all safety oversight entities/the investigation authority. 2) Verify ability to offer competitive terms of employment and compensation packages.	STD A19 3.2.3.1 GM		CE-3

PQ No.	Protocol Question	Guidance for Review of Evidence	ICAO References	PPQ	CE
		3) Verify in each audit area as applicable: PEL, OPS, AIR, AIG (only when there is a permanent investigation authority), ANS and AGA.	Doc 9734 Part A, C3		
2.105	Has each safety oversight entity/investigation authority established a training policy for technical personnel?	1) Review that a documented training policy is established and signed at the management level of the authority. 2) Verify that the training policy commits to providing all necessary training to all technical personnel in all areas, including: a) initial (e.g. induction and basic training); b) on-the-job training (OJT); c) recurrent training; and d) specialized/advanced training. 3) The training policy should require the establishment of a training programme for each technical staff position and training plans for each technical staff member.	STD A19 3.2.4 GM Doc 9734 Part A, C3		CE-4
2.205	Are appropriate facilities available to the personnel of each safety oversight entity?	1) Assess adequacy of facilities for the personnel for the performance of duties and responsibilities for each safety oversight entity. 2) Verify in the following audit areas: PEL, OPS, AIR, ANS and AGA.	STD A19 3.2.5 GM		CE-5

PQ No.	Protocol Question	Guidance for Review of Evidence	ICAO References	PPQ	CE
		Note to the auditor: This PQ is not linked to AIG.	Doc 9734 Part A, C3		
2.207	Are appropriate equipment and transportation available to the personnel of each safety oversight entity?	1) Assess adequacy of equipment for the personnel for the performance of duties and responsibilities for each safety oversight entity, including photocopiers, computers/laptops/notebooks, printing facilities, telephone/mobiles, Internet, microfiche/microfilm reader, if needed. 2) Assess whether relevant personnel ~~has~~have access to adequate transportation to perform their duties. 3) Confirm the information above with the following audit areas: PEL, OPS, AIR, ANS and AGA. Note to the auditor: This PQ is not linked to AIG.	STD A19 3.2.5 GM Doc 9734 Part A, C3		CE-5

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